

**UNITED STATES INTERNATIONAL TRADE COMMISSION  
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines  
Administrative Law Judge**

**In the Matter of:**

**CERTAIN WEARABLE DEVICES**

**Investigation No. 337-TA-1478**

**RESPONDENTS' OPPOSITION TO SAMSUNG'S MOTION *IN LIMINE* NO. 3  
(EDIS Doc. ID 892499, Mot. No. 1478-011)**



|                                                                                                        | <u>Page</u> |
|--------------------------------------------------------------------------------------------------------|-------------|
| I. INTRODUCTION .....                                                                                  | 1           |
| II. ARGUMENT .....                                                                                     | 1           |
| A. Samsung’s Attempt to Preclude Factual Testimony Concerning “Ring 1’s<br>Timeline” .....             | 1           |
| B. Samsung’s Attempt to Preclude Factual Testimony About the PCB Structure of<br>the Gen. 1 Ring ..... | 5           |
| III. CONCLUSION.....                                                                                   | 8           |



## I. INTRODUCTION

Respondents Ouraring Inc. and Oura Health Oy (collectively, “Oura”) hereby oppose Samsung’s Motion *in Limine* No. 3 concerning what Samsung predicts will be testimony from Oura’s witnesses about Oura’s prior art Gen. 1 ring. Samsung’s third MIL has two largely distinct sub-parts: testimony concerning the prior art status of the Gen. 1 ring, and testimony concerning electrical interconnections within the printed circuit board (PCB) of that Gen. 1 ring. Both aspects of this MIL wrongly anticipate the testimony that Oura will offer, perhaps to set up straw man positions, and also incorrectly portray the factual record of this Investigation.

## II. ARGUMENT

### A. ***Samsung’s Attempt to Preclude Factual Testimony Concerning “Ring 1’s Timeline”***

Samsung’s third MIL with respect to the prior art availability conflates two different issues: the on-sale/shipment dates of Oura’s Gen. 1 ring, and the prior art availability of Oura’s Gen. 1 ring. As Oura’s prehearing brief (and prior contentions) have made clear, the prior art availability of Oura’s Gen. 1 ring for the ’677 and ’675 Patents is based on public use/availability of this ring in June, 2015, not on sales of the ring later in the year. *See* Oura’s Prehearing Brief (EDIS Doc. ID 891067; “RPreHB”) at 22-26 (evidence of availability at CE Week 2015 on June 23-25, 2015 in New York, NY “renders the Oura Ring Gen. 1 in public use and/or available to the public prior to August 12, 2015”); *see also* 35 U.S.C. § 102(a) (prior art includes devices “in public use” or “available to the public before the effective filing date of the claimed invention”); *Minerva Surgical, Inc. v. Hologic, Inc.*, 59 F.4th 1371, 1379 (Fed. Cir. 2023) (“Displaying a product at a trade show by demonstrating to observers the product in its normal operation, or a simulation thereof, generally constitutes a ‘public use’ of the displayed product.”) (citation omitted). For the ’789 Patent, which has a much later 2016 priority date, sales may alternatively be used to

[REDACTED]

establish the prior art status of the Gen. 1 ring (*see* Oura’s prehearing brief at 154), which is not contested by Samsung. *See* Samsung’s prehearing brief at 232-34 (contesting the features of the on-sale product, but not contesting that sales prior to 2016 occurred and even acknowledging that sales occurred within “months” of June, 2015, and therefore well before the alleged June, 2016 priority date of the ’789 Patent).

Thus, while Samsung misportrays Oura’s provision of discovery about later sales of the Oura Gen. 1 ring (addressed, *infra*), claims of insufficient discovery about these later sales are also irrelevant to the prior art status of the Oura Gen. 1 ring for the ’675 and ’677 Patents, and not contested for the ’789 Patent. Accordingly, Samsung’s allegations of shipments beginning in “November 2015” and lack of production of sales data are incorrect<sup>1</sup> but also are irrelevant. *See* Samsung’s MIL at 5-6. So are Oura’s objections to questions about the sales (“Do you know the exact date when it was on sale in the U.S.?”; “And you can’t put even a month on when Oura Ring 1 was released or put on sale in the U.S[.], correct?”) as being outside the scope of the deposition and therefore only subject to the witnesses’ personal knowledge. *Id.* at 6. And so are complaints that the witnesses were allegedly not knowledgeable about the dates of the first sales (“And you can’t put even a month on when Oura Ring 1 was released or put on sale in the U.S[.], correct?”; “You also weren’t there the whole time period where Oura Ring was on sale either, correct?”). *Id.* at 6-7. Simply put, sales are irrelevant to the prior art status of the Oura Gen. 1 ring for the ’675 and ’677 Patents, and not contested for the ’789 Patent.

---

<sup>1</sup> Samsung never specifically requested this sales data. Additionally, Oura did produce evidence of these sales, such as Wayback Machine capture from August, 2015 of Oura’s Kickstarter campaign (Ex. A (OURA1478\_00001519-539)) showing the product on sale, and Mr. Christophy confirmed that Oura’s Gen. 1 ring was first sold by this Kickstarter campaign. *See* Ex. 7 at 26:3-24.

[REDACTED]

Rather, as stated, the prior art status of the Oura Gen. 1 ring for the '675 and '677 Patents comes from its public use/availability at least as of June, 2015. And on this subject (entirely avoided by Samsung's MIL) abundant requested discovery was provided. *See generally*, RPreHB at 22-26 (over a dozen exhibits produced during the course of fact discovery showing public availability, including most notably RX-0022C, RX-0023, RX-0058, RX-0060C, RX-0061, RX-0062, RX-0063). And at the depositions of Oura's designated representatives, Samsung asked nothing about the public availability of the Gen. 1 ring in June, 2015. Samsung cannot claim prejudice when it did not ask questions. As for questions about first sales—applicable to one prior art theory for the '789 Patent—Mr. Christophy confirmed that they were sold in 2015 by the Kickstarter campaign. *See* Ex. 7 at 26:3-24.

In sum, Samsung's attempt to expand from discovery complaints regarding later sales of the Oura Gen. 1 ring to preclude testimony about the earlier public use and availability of the Gen. 1 ring is wholly inappropriate. It is simply not correct that “[h]aving asserted complete ignorance of Ring 1's timeline in deposition, Mr. Larson and Mr. Christophy cannot credibly claim to have personal knowledge of critical facts on that very subject at the hearing.” Samsung's MIL at 7. There was not “complete ignorance” of public availability—these witnesses were prepared to testify and Samsung did not ever ask about it—and Samsung was not deprived of discovery of public availability.

Separately, Mr. Larson and Mr. Christophy will also not merely act as mouthpieces to present hearsay statements from Tero Vallius and Marjut Uusitalo—rather, these witnesses will testify, properly, on the basis of personal knowledge gained as corporate representatives and within the scope of their duties at Oura. This is permissible from corporate representatives. *See, e.g., Univ. Healthsystem Consortium v. UnitedHealth Grp., Inc.*, 68 F. Supp. 3d 917, 921 (N.D. Ill. 2014)

[REDACTED]

(“Although Plaintiff is correct that Rule 30(b)(6) by its terms refers only to depositions, courts have held that a Rule 30(b)(6) witness may testify at trial ‘as to matters within corporate knowledge to which he testified in deposition.’ [] That is, a Rule 30(b)(6) witness may testify both in a deposition and at trial to matters as to which she lacks personal knowledge, notwithstanding the requirements of Federal Rule of Evidence 602.”) (citations omitted).

Samsung also does not correctly relate the facts about the availability of Tero Vallius and Marjut Uusitalo (“On May 27, 2026—just two days before the close of discovery and a month after the due date for witness lists—Oura offered depositions of Mr. Vallius and Ms. Uusitalo in Finland and stated that it intended to move to amend its witness list to add both employees.”). See Samsung’s MIL at 8, n. 2. The witnesses were actually offered on May 26, 2026 as additional corporate representatives on Topic 26, and made available on May 28<sup>th</sup> and May 29<sup>th</sup>, and then, in a series of unanswered emails over several days, Oura offered to make the witnesses available the following week. See Ex. B (email thread between the parties from May 22 to May 28, 2026) (“We’ve now sent four emails with no response from Samsung”). Samsung finally responded on May 28<sup>th</sup> and stated that “As to Marjut Uusitalo, Oura’s May 26 email identifies her as testifying regarding ‘[p]ublic use of Oura Ring Gen. 1 in U.S. prior to August 12, 2015.’ Our May 22 letter does not identify or suggest any areas where we believe Oura’s designee was unprepared on the issue.” *Id.* (emphasis added). Later on May 28<sup>th</sup>, Samsung confirmed that “we withdraw our objections concerning the preparedness of Oura’s 30(b)(6) witnesses on technical aspects of Oura Gen 1.” *Id.* Samsung thus previously withdrew the objections it now makes.

In short, Oura’s fact witnesses will not present hearsay statements from Tero Vallius and Marjut Uusitalo, but also, Samsung was not deprived of a chance to take the depositions of these

[REDACTED]

employees if it wished, and it explicitly stated that it did not object to the preparedness of Oura's corporate representatives as to public use or the technical features of the Gen. 1 ring.<sup>2</sup>

Thus, Oura's witnesses should not be precluded from offering corporate testimony, subject to hearsay rules of course, about the public availability of Oura's Gen. 1 ring prior to the August 12, 2015 priority date of the '675 and '677 Patents, or about sales at the end of 2015 that would be prior to the alleged June 13, 2016 priority date of the '789 Patent.

***B. Samsung's Attempt to Preclude Factual Testimony About the PCB Structure of the Gen. 1 Ring***

Samsung badly misstates the factual record with respect to the second part of its third MIL.

First, much of Mr. Christophy's complained of testimony (see Samsung's MIL at 9, citing Ex. 7 at 82:14-19, 110:10-13) concerns Oura's Gen. 4 ring, not Oura's Gen. 1 ring. See Ex. 7 at 80:7-21 (noting that deposition exhibit 4, which is being discussed at 82:14-19, concerns "the design of the Ring 4's PCB"); *id.* at 104:4-5 (showing that at 110:10-13, deposition exhibit 4 and the Gen. 4 ring continued to be discussed with no reference to Gen. 1; "In the context of this, I think [REDACTED]").

Second, regarding his testimony at Ex. 7 at 161:7-12,<sup>3</sup> Samsung was asking about a [REDACTED], and Mr. Christophy confirmed [REDACTED]. But Mr. Christophy did not testify that [REDACTED].

---

<sup>2</sup> For these reasons, Samsung's one-sentence expansion from a MIL about fact witnesses into also attempting to preclude Dr. Mortazavi's reliance on conversations with Mr. Vallius and Ms. Uusitalo in the course of forming his expert opinions (Samsung's MIL at 8) is inappropriate. Samsung could have deposed Mr. Vallius and Ms. Uusitalo on these topics, and experts may rely on hearsay in forming their opinions. See Fed. R. Evid. 703.

<sup>3</sup> Based on the text that is quoted, Samsung's citation to 160:7-12 is apparently a typo, but the testimony concerns Gen. 4 regardless.

[REDACTED]

Ex. 7 at 160:14-161:1. The distinction between [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

—is the anticipated testimony of Mr. Christophy to be offered at the hearing.

Neither Mr. Christophy nor anyone else has ever said that the [REDACTED]

[REDACTED]

[REDACTED]<sup>4</sup> Samsung's argument that Dr.

---

<sup>4</sup> Mr. Christophy's testimony concerning the [REDACTED]

[REDACTED]

[REDACTED]

Mortazavi “agree[d] that ‘additional supporting information’” for the interconnects was needed (Samsung’s MIL at 9, citing Ex. 12 at 445:14-17) omits important context: the question was what was necessary to “[REDACTED]

[REDACTED], and Dr. Mortazavi agreed that “[REDACTED]

[REDACTED]” (Ex. 12 at 445:6-446:5), and Oura’s proof is corroborated by [REDACTED]

Thus, Samsung’s first request that “Mr. Christophy (or any other Oura witness) [not be allowed] to offer new testimony [] based on the contents of electronic design files that were never produced in this investigation” (Samsung’s MIL at 9) is easy to dispose of: testimony regarding the contents of unproduced electronic design files will not be offered by Oura (indeed, Oura’s prehearing brief makes no arguments on the basis of unproduced documents). Mr. Christophy’s testimony will be anchored in produced documents.

But Samsung’s second request to broadly preclude all factual testimony about the electrical connections within the Gen. 1 ring’s PCB (“Mr. Christophy (or any other Oura witness) [not be allowed] to offer new testimony [] that could be disproved or undermined by those unproduced documents”; Samsung MIL at 9) is speculative, unjustified, and deeply problematic.

Mr. Christophy never [REDACTED]

[REDACTED]. And even if Mr. Christophy’s testimony could be twisted to say that relevant documents existed for Gen. 1 (and this is disputed, given that

---

[REDACTED] Ex. 7 at 124:9-125:4.

[REDACTED]  
[REDACTED] is irrelevant to the claim language), after Mr. Christophy's deposition, Samsung never requested these documents. It cannot now use its own speculation, combined with its failure to seek discovery if it believed such documents were relevant to its case,<sup>5</sup> to preclude an entire category of testimony that will be offered on the basis of documents which were produced. Ultimately, Mr. Christophy did testify to [REDACTED] in the Gen. 1, and Samsung later confirmed that it did not object "concerning the preparedness of Oura's 30(b)(6) witnesses on technical aspects of Oura Gen 1." Ex. B. He should be allowed to provide this testimony again, and will do so on the basis of produced documents.

In sum, the second part of Samsung's third MIL should be denied as well.

### III. CONCLUSION

For the reasons herein, Samsung's third motion *in limine* should be denied in full.

Dated: September 2, 2026

Respectfully submitted,

s/ Jasjit S. Vidwan

Jasjit S. Vidwan

James A. Fussell, III

Saqib J. Siddiqui

Bryan C. Nese

Michael L. Lindinger

Tiffany A. Miller

Clark S. Bakewell

Alison T. Gelsleichter

Tariq Javed

Amanda E. Stephenson

Seth W. Bruneel

Courtney Krawice

Séké Godo

---

<sup>5</sup> Following fact depositions, Samsung sent a four-page letter on May 22, 2026 demanding specific additional discovery (Ex. C), but Samsung never requested production of Gen. 1 layout documents that it now contends are relevant, nor did it even mention them. Relevant to Mr. Christophy's deposition, Samsung only requested "failure analyses." *Id.* at 3.



Angeline Premraj  
Paul Choi  
So Ra Ko  
Jaspreet Momi  
Jennifer Weinberg  
MAYER BROWN LLP  
1999 K Street, NW  
Washington, DC 20006-1101  
Tel.: +1 202.263.3000

Robert G. Pluta  
Nicholas H. Ciulla  
MAYER BROWN LLP  
71 S. Wacker Drive  
Chicago, IL 60606  
Tel.: +1 312.782.0600

Brian W. Nolan  
MAYER BROWN LLP  
1221 Avenue of the Americas  
New York, NY 10020  
Tel.: +1 202.506.2500

*Counsel for Respondents Ouraring Inc. and  
Oura Health Oy*

Oura-ITC@mayerbrown.com

# **EXHIBIT A**

Document title: OURA ring. Improve sleep. Perform better. by ÖURA — Kickstarter

Capture URL: <https://web.archive.org/web/20150826061610/https://www.kickstarter.com/projects/oura/oura-ring-improve-sleep-perform-better>

Page loaded at (UTC): Thu, 12 Mar 2026 21:22:30 GMT

Capture timestamp (UTC): Thu, 12 Mar 2026 21:24:45 GMT

Capture tool: 10.77.2

Collection server IP: 54.145.42.72

Browser engine: Mozilla/5.0 (X11; Linux x86\_64) AppleWebKit/537.36 (KHTML, like Gecko) Chrome/142.0.7444.265 Safari/537.36

Operating system: Linux (Node 22.21.1)

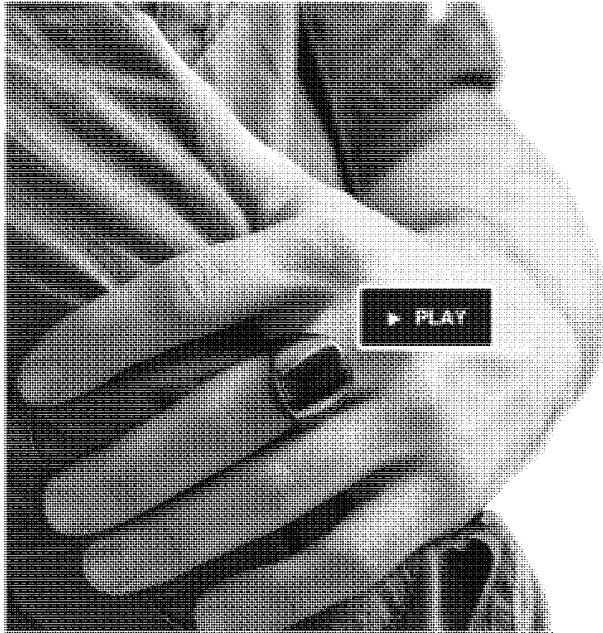
PDF length: 21

Capture ID: j6tWi8uWtHCKqbiyX9LDJQ

Display Name: nhey

## OURA ring. Improve sleep. Perform better.

by ÒURA



1,126

backers

\$287,099

pledged of \$100,000 goal

29

days to go

Back This Project

★ Remind me

This project will be funded on Thu, Sep 24 2015 1:22 PM  
+00:00

OURA is a revolutionary ring-sized wellness computer that helps you sleep and perform better.

San Francisco, CA

Wearables

Share this project

ÒURA

First created | 0 backed

ouraring.com

See full bio

Contact me



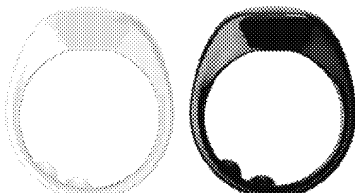
Campaign

Updates (8)

Comments (161)

## About this project

ÒURA - REVOLUTIONARY  
RING-SIZED WELLNESS COMPUTER.  
HELPS YOU SLEEP & PERFORM BETTER.  
NOW \$229 (NORMALLY \$299)



## Rewards

Pledge \$5 or more

43 backers

A BIG THANK YOU for your support!

You will get the latest ÒURA news, updates  
and special offers. We'll also invite you to join  
the We Are Curious community.

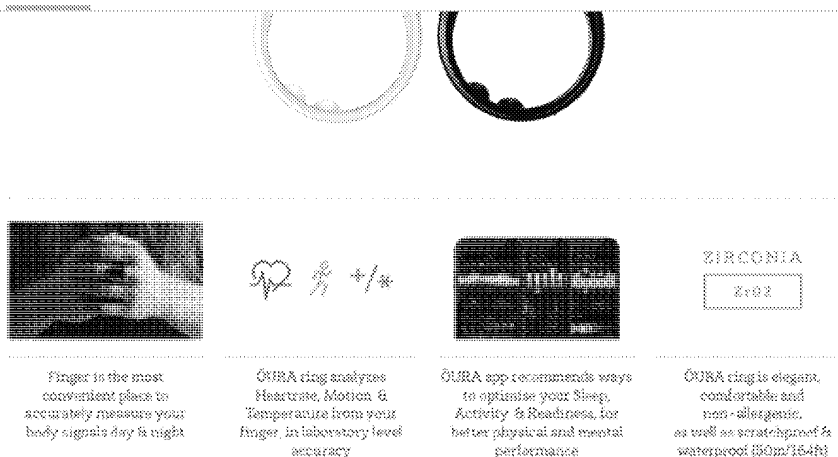
Estimated delivery: Sep 2015

Pledge \$199 or more

500 backers

All gone!

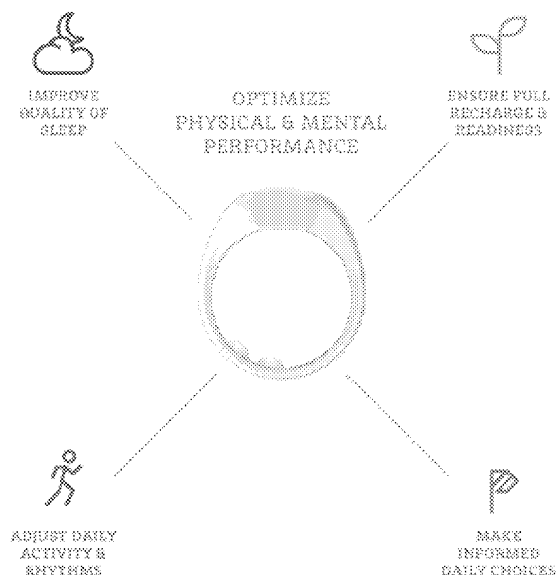
Get ÒURA as a very early bird offer. Ring



ÖURA is a revolutionary wellness ring and app, designed to help you get more restful sleep and perform better. It enables you to learn how your lifestyle choices affect your sleep, and how the quality of your sleep affects your ability to perform.

The ÖURA ring can automatically tell when you are sleeping. When you go to sleep, the ÖURA ring analyzes the quality of your rest and recovery by measuring your heart rate (optically), respiration rate, body temperature, and movement. While you are awake, it monitors the duration and intensity of your activities, and the time you spend sitting.

The ÖURA app integrates and visualizes this data to identify patterns between your sleep quality and daily activities. By understanding how well you slept and recharged, it can determine your readiness to perform and help you adjust the intensity and duration of your day's activities. It can also uncover actionable insights for changes to your daily activities that can help you sleep better.



We've spent years conducting scientific research, building hardware prototypes and developing the algorithms for ÖURA. The end result is the most advanced wearable wellness device ever created, hidden in a ring that is elegant and ergonomic. A device that can be worn all day and all night. Scratch proof and waterproof, ÖURA ring is made to be used anywhere, anytime.

Help the world become smarter about improving sleep

### Pledge \$199 or more

500 backers All gone!

Get ÖURA as a very early bird offer. Ring available in glossy black or white.

+ a We Are Curious membership

(Estimated retail \$299)

Estimated delivery: Nov 2015  
Ships anywhere in the world

### Pledge \$229 or more

369 backers Limited (9631 left of 10000)

Get ÖURA as a special Kickstarter offer. Ring available in glossy black or white.

+ a We Are Curious membership

(Estimated retail \$299)

Estimated delivery: Nov 2015  
Ships anywhere in the world

### Pledge \$398 or more

134 backers Limited (166 left of 300)

Get 2 x ÖURA. For yourself and your better half or your best friend as a present. A very early bird offer. Ring available in glossy black or white.

+ 2 We Are Curious memberships

(2 rings estimated retail \$598)

Estimated delivery: Nov 2015  
Ships anywhere in the world

### Pledge \$399 or more

48 backers Limited (252 left of 300)

Get the stealth black edition ring. An exceptionally hand finished black matte ring for more luxurious feel.

+ a We Are Curious membership

(Estimated retail \$499)

Estimated delivery: Nov 2015  
Ships anywhere in the world

### Pledge \$499 or more

1 backer Limited (99 left of 100)

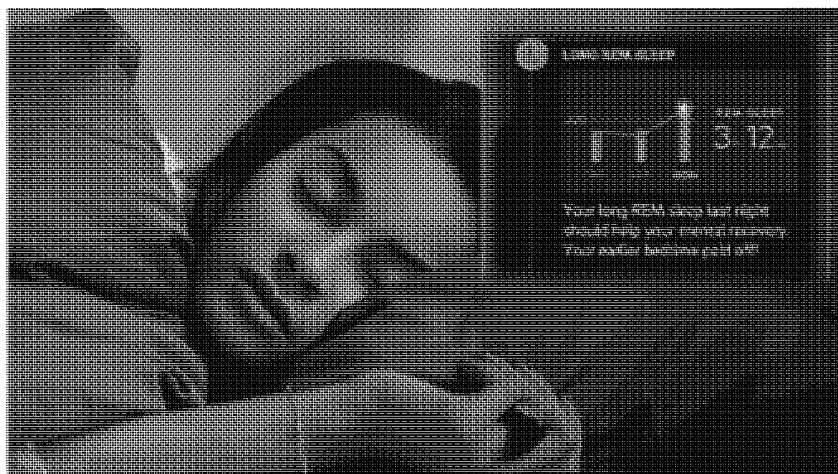
Get your ÖURA with stylish laser applied initials in the band. Ring available in glossy black or white.

created, hidden in a ring that is elegant and ergonomic. A device that can be worn all day and all night. Scratch proof and waterproof, ÆURA ring is made to be used anywhere, anytime.

### Help the world become smarter about improving sleep

ÆURA monitors sleep, activity and readiness with laboratory-level accuracy unlike any other wearable device. By getting ÆURA into thousands of fingers we can transform the world's understanding about sleep. We are co-operating with We Are Curious, a personal data platform and community to make it easy for you to share your ÆURA data with leading sleep researchers from around the world. Sharing is optional, but if you choose to do so, you will contribute to a new level of understanding about sleep within the context of normal daily life.

## Sleep Better



*Sleep better. Recharge yourself.*

Sleep quality has a profound impact on your daily performance, well-being and overall quality of life.

ÆURA works wherever and whenever you sleep. There is no need notify the ring or app that you are planning to turn in. ÆURA is so smart that it knows when you are sleeping.

With its proprietary technology and algorithms, the ÆURA ring identifies deep sleep, REM sleep, light sleep, and periods of wakefulness. This information is used to create nightly sleep profiles and to gauge the quality of your sleep. A balanced sleep profile is important to help you recharge your body and mind during sleep.

While you sleep, the ÆURA ring continuously measures your pulse waveform, the exact time between heartbeats, and your body temperature. From these data points it calculates your heart rate, respiration rate and other parameters needed to accurately analyze sleep in order to create your sleep profile.

The sleep profiles produced by ÆURA parallel the profiles produced by the gold standard of sleep laboratory instruments.

## Optimize Performance



Get your ÆURA with stylish laser applied initials in the band. Ring available in glossy black or white.

+ a We Are Curious membership

**Estimated delivery:** Nov 2015  
Ships anywhere in the world

### Pledge \$895 or more

11 backers Limited (139 left of 150)

5 x ÆURA. For your whole family. A very early bird offer. Ring available in glossy black or white.

+ 5 We Are Curious memberships

(5 rings estimated retail \$1495)

**Estimated delivery:** Nov 2015  
Ships anywhere in the world

### Pledge \$999 or more

1 backer Limited (9 left of 10)

A Stealth Black ring with stylish laser applied initials in the band.

+ a We Are Curious membership

**Estimated delivery:** Nov 2015  
Ships anywhere in the world

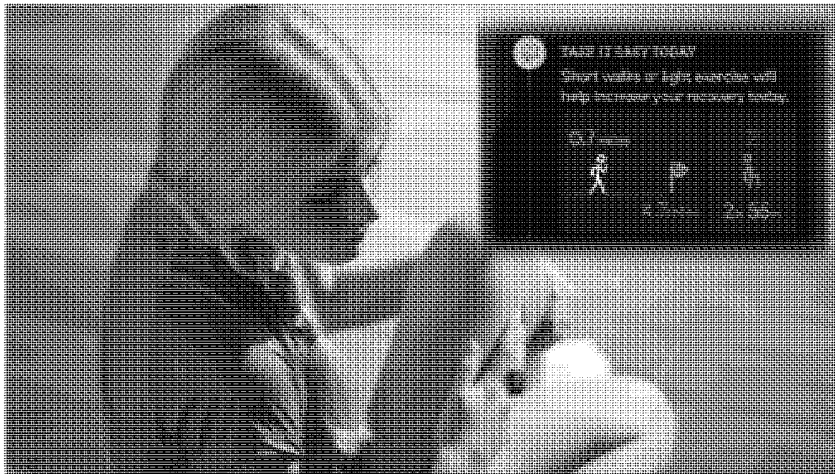
### Pledge \$7,999 or more

0 backers Limited (10 left of 10)

Participate in a sleep retreat in an exotic location in Europe with Sleep Experts and Doctors from well known sleep organizations. (Flights not included)

Includes a laser personalized ring of your choice.

**Estimated delivery:** Apr 2016



*OURA helps you choose the right type and timing of activity*

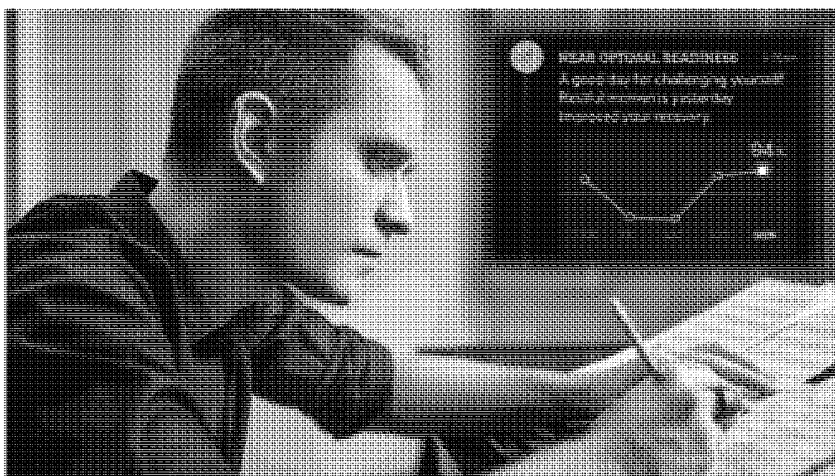
If you want to improve your sleep quality, tracking your sleep is not enough. Many other factors, like your physical activities, daily rhythms and lifestyle choices, influence your ability to get restful sleep. ÖURA helps you understand the effect of these factors on your sleep quality.

Your sleep quality and your lifestyle also impact your ability, or readiness, to perform during the day. ÖURA helps you understand how your sleep and activities contribute to your readiness. It can even help you identify which daily practices are most effective at helping you recharge.

During the day, the ÖURA ring automatically measures all your physical activity and time spent sitting. The app delivers actionable recommendations to adjust the intensity, duration and timing of your activities based on your readiness to perform. It also offers activity-related suggestions to help you get more restful sleep at night.

When prompted via the app, the ÖURA ring can also measure your physiological response to activities during the day. This enables ÖURA to learn what practices help you recharge, and to offer suggestions that help you maintain a state of readiness throughout the day.

## Readiness Score



*Readiness Score helps you to optimize performance*

ÖURA is designed to help maximize your readiness – your ability to perform at your best both

*Readiness Score helps you to optimize performance*

ÖURA is designed to help maximize your readiness – your ability to perform at your best both mentally and physically. It's a game-changing perspective on how to go about your life, in order to achieve top performance.

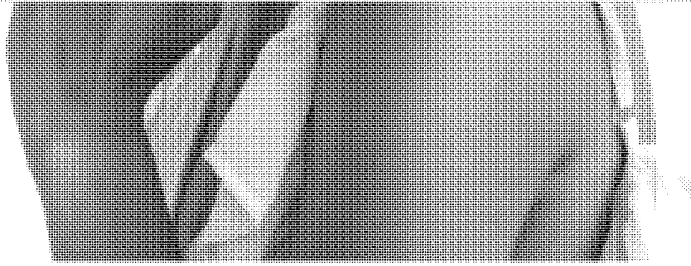
The Readiness Score is a simple measure designed to help you identify days that are ideal for challenging yourself, and those that are better for taking it easy. The score, which is displayed as a percentage, is generated using all of the sensor data, physiological signals, sleep and activity patterns that are monitored by ÖURA.

Sleep is one of the most important variables to get right in order to help sustain both cognitive and physical performance. A night with little deep sleep would have negative impact on your score because deep sleep is important for physical recovery. A good amount of REM sleep is a strong indicator of mental recovery. Variance in your resting heart rate as well as changes in your autonomic nervous system reactions over the time indicate how well your body and mind recharge from the challenges of daily life.

The Readiness Score is just the tip of the iceberg. ÖURA also provides actionable recommendations that help you perform at your best. It even lets you dig into detailed sleep, activity, and readiness dashboards to identify patterns and correlations between your lifestyle choices, your readiness, and sleep quality.

**Elegant. Comfortable. Durable. The ÖURA ring**





We designed the ÖURA ring to be stunning, comfortable, and simple. Our goal was to create a wellness device that matches seamlessly with your style and daily life. The sophisticated and minimal design will look great anywhere, from the beach to the office, from the yoga studio to the opera and cocktail party.

We chose the ring form factor because it is comfortable to wear for long periods of time, meaning you can wear ÖURA all day and all night. A ring also fits snugly against your skin and is the most convenient place to accurately capture the body signals necessary for measuring and interpreting your sleep, physical activity and performance related indicators.



ÖURA ring is made with a premium ceramic compound that has a beautiful and smooth feel, and comes in a glossy or matte finish. It is also scratch proof and waterproof, so you can take ÖURA anywhere.

The ÖURA ring works without demanding your attention, or distracting you and your lifestyle. The ring knows when you go to sleep, and when you wake up, when you are active, and when you are sitting. It uploads data to your phone automatically. If your phone is not available, it can collect and store data for up to three weeks, as long as you keep wearing and charging it. It's that simple – no actions are required from you.

We want the ÖURA ring to go with you everywhere, and to let you do everything you would normally do.

## Actionable recommendations – The ÖURA app

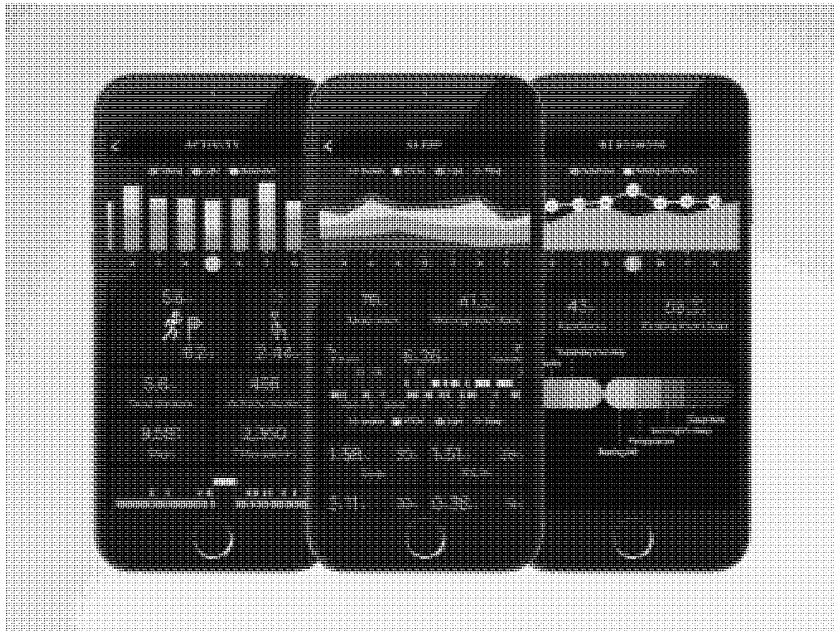
The ÖURA app is a powerful companion to the ring. It delivers personalized and actionable recommendations, and visualizes data regarding your sleep, activity and readiness. It also lets you control settings of your ÖURA ring, and access support content.



control settings of your ÆURA ring, and access support content.



The ÆURA app is easy and intuitive. The sleep, activity and readiness dashboards are designed to let you deep-dive into your daily data. You can also dig into visualizations highlighting longer-term trends and patterns.



*ÆURA App gives you deep details of sleep, activity and readiness.*

ÆURA's groundbreaking recommendation engine functions like a virtual coach committed to improving your sleep quality, performance, and readiness. Over time, it learns about your unique rhythms and provides more personalized advice.

**Who is talking about ÆURA?**

## Who is talking about ÕURA?

FASTCOMPANY

WIRED



CBS NEWS

Kauppalehti

THE HUFFINGTON POST

SLASHGEAR

POPULAR SCIENCE

## Rewards

\$5

SPECIAL THANK YOU

- ÕURA SPECIAL THANK YOU
- ÕURA Insider newsletter
  - We Are Curious invitation

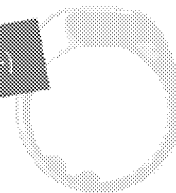


\$199

EARLY BIRD SPECIAL  
\$299 Value  
Save \$100

- ÕURA STARTER KIT
- ÕURA Ring
  - ÕURA Ring box charger
  - ÕURA Micro USB cable
  - We Are Curious membership

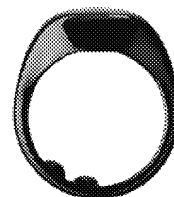
SOLD OUT • Thank You for the support :)



\$229

KICKSTARTER SPECIAL  
\$299 Value  
Save \$70

- ÕURA STARTER KIT
- ÕURA Ring (glossy black / white)
  - ÕURA Ring box charger
  - ÕURA Micro USB cable
  - We Are Curious membership

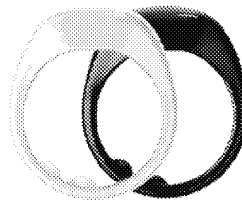


[Save a life](#)**\$398**

**EARLY BIRD SPECIAL**  
 \$398 Value  
 Save \$200

**OURA FRIEND PACK**

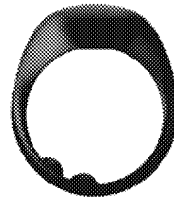
- 2 x OURA Ring (glossy black / white)
- 2 x OURA Ring Box charger
- 2 x OURA Micro USB cable
- 2 x We Are Curious membership

**\$399**

**KICKSTARTER SPECIAL**  
 \$499 Value  
 Save \$100

**OURA STEALTH BLACK**

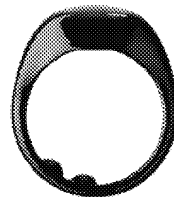
- Exceptionally hand finished
- OURA Ring (Stealth Black)
- OURA Ring Box charger
- OURA Micro USB cable
- We Are Curious membership

**\$499**

**PERSONALIZED &  
 LASER ENGRAVED**

**OURA PERSONALIZED**

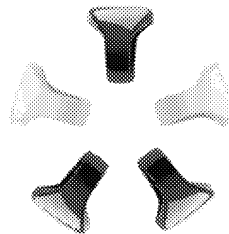
- Personalized with an engraving of your initials to the band
- OURA Ring (glossy black / white)
- OURA Ring Box charger
- OURA Micro USB cable
- We Are Curious membership

**\$895**

**EARLY BIRD SPECIAL**  
 \$1495 Value  
 Save \$600

**OURA FAMILY PACK**

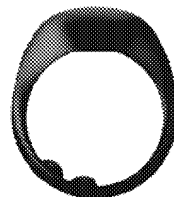
- 5 x OURA Ring (glossy black / white)
- 5 x OURA Ring Box charger
- 5 x OURA Micro USB cable
- 5 x We Are Curious membership

**\$999**

**PERSONALIZED &  
 LASER ENGRAVED**

**OURA PERSONALIZED STEALTH BLACK**

- Personalized with an engraving of your initials to the band
- Exceptionally hand finished
- OURA Ring (Stealth Black)
- OURA Ring Box charger
- OURA Micro USB cable
- We Are Curious membership

**\$7,999**

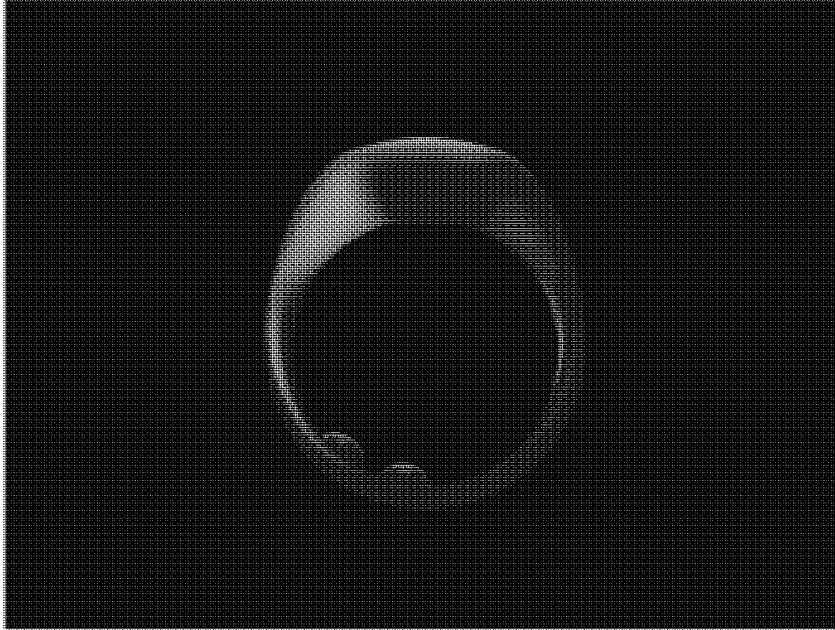
**OURA SLEEP SEMINAR  
 IN EUROPE**

**OURA SLEEP SEMINAR IN EUROPE**

- Exotic location in Europe
- Best Sleep Experts & Doctors
- Laser engraved OURA Ring of your choice, with accessories
- We Are Curious membership



## Limited edition Ōura Stealth Black. \$399.



*Dramatic Stealth Black Edition*

Some of the most exclusive sports cars are stealth black. This inspired us to create a very limited edition of ŌURA Stealth Black.

Manufacturing a dramatic stealth black surface requires an additional level of precision and pushes the limits of manufacturing feasibility. Perfecting the surface requires meticulous, skilled human attention to microscopic details, hence the radically limited quantity and price.

## Ready to ship in November 2015

We are ready to ship in November 2015

ŌURA is already much more than just visions and ideas!

Our team has worked hard for over two years, together with our experienced partners. We are past the prototyping phase and already focusing on mass production capability. The ŌURA ring has undergone rigorous testing of reliability and durability, and the time between now and shipping will be mostly spent on fine-tuning the software and user experience. We manufacture ŌURA in Finland, in one of the most advanced electronics manufacturing locations in the world, close to our company's main R&D site. This ensures maximal speed, rapid improvements and premium production quality.

## Key Features

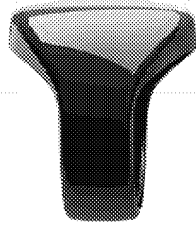
## Key Features

### ELEGANT, DURABLE & COMFORTABLE

Ultra durable  
Scratchproof  
Waterproof up to  
50m/154ft

Ergonomic  
Shape

Feels natural  
on skin – no  
metals



High-tech  
Ceramic  
Zirconia

Medical grade  
Allergy-free  
inlay molding

Uninterrupted  
access to  
body signals

### FULLY AUTOMATIC & EFFORTLESS



**Automatic On/Off**  
OURA knows when  
it's on your finger



**Sleep & Wakeup detection**  
OURA knows when you  
fall asleep and wake up



**Activity detection**  
OURA detects your activity,  
you don't need to tell it



**Automatic Wireless**  
Automatic Bluetooth  
switch-off when you sleep

### LABORATORY LEVEL ACCURACY

OURA uses proprietary and groundbreaking algorithms  
based on over 50 years of research



**Optical pulse waveform**  
Heart Rate  
Respiration Rate  
Interbeat Interval  
Heart Rate Variability



**Accelerometer**  
Ultra Sensitive  
3D measurement



**Body Temperature**  
Integrated night-time body  
temperature.



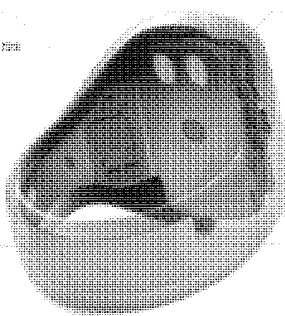
**Learning & Autonomy**  
Works without mobile  
Learns about you  
Personalizes to you

### BREAKTHROUGH MINIATURIZATION

**High Speed Memory**  
Measures, analyzes & stores  
Up to 3 weeks  
Works without phone

**ARM® Cortex™ M0**  
High performance  
Ultra Power Efficient  
Realtime processing

**Advanced sensors**  
LEDs for optical pulse  
measurement



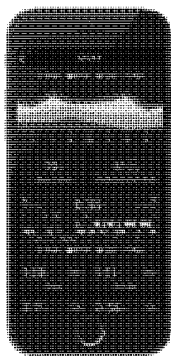
**Powerful Battery**  
Li-Ion 40mAh  
Ultra low  
consumption

**Smart Wireless**  
Connects & syncs  
with mobile phone  
Bluetooth® Smart

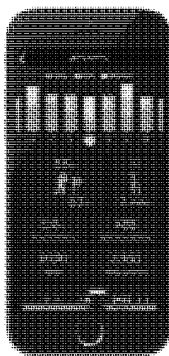
**Evolving firmware**  
Fast updates  
Fully automatic  
From mobile App

### POWERFUL MOBILE APPLICATION

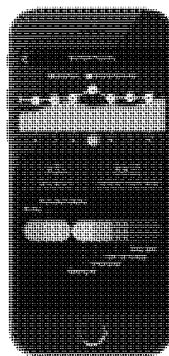




**Beautiful Information**  
ŌURA shows summaries, trends and details of your sleep, activity & readiness



**Helpful Recommendations**  
ŌURA gives fully personalized recommendations for improving sleep & adjusting activity



**Automatic & Manual Targets**  
ŌURA helps you set useful and achievable targets for your activities

#### DETAILED VIEW INTO YOUR WELLNESS

ŌURA combines an incredible amount of wellness information into an easy-to-use application. An Extensive In-App Help helps you understand all measurement parameters & analysis results.



**Sleep**  
Sleep Summary & Details  
Sleep Trends  
Sleep Score  
Lowest Heartrate at Night  
Sleep Graph with Durations (Deep/Light/REM/Wake)



**Activity**  
Activity Summary & Details  
Activity Trends  
Activity Step Count  
Calories Burned  
Automatic & Manual Targets  
Activity in Intensity Zones  
Passivity Notification (Sitting Alert)



**Readiness**  
Readiness Summary & Details  
Readiness Trends  
Readiness Score  
Contributors to Readiness Score (incl. sleep, physical activity and body responses)

## ŌURA + We Are Curious

We're excited to announce our first collaboration with We Are Curious - a personal data platform built around a growing community of individuals who have questions about their sleep, health, and wellness.

With your pledge you will have the option to link your ŌURA data to the Curious platform where you can track additional factors—set up as 'tags' that you can easily track—and see how they influence your sleep quality and performance. Whether you're interested in your daily consumption (caffeine, alcohol, sugar), sleep aids you might be trying (valerian, melatonin, acupuncture) or other factors in your environment (barometric pressure, CO2, pollen count), the Curious platform enables fast and easy manual entry or automated import, as well as graphing and other analytical functions. You can share your questions and discoveries with other Curious users who share your interests.

Collaboration of ŌURA and We Are Curious makes it also possible for you to share your ŌURA data and lifestyle related data with world-leading sleep researchers. Sharing is optional, but if you choose to do so, you will contribute to creating a whole new level of understanding about sleep and performance in the context of normal daily life.

## Timeline

## Timeline

1982

World's first wireless heart rate monitor is developed in Oulu region, Finland.

03/2013

**TEAM**  
 ŌURA team is formed in Oulu, Finland. The team operates in secrecy developing the new product. The company is codenamed 'JouZen', a play on the Finnish word for 'Jawan'.

12/2013

**1ST GEN PROTOTYPE**  
 First generation of prototypes of ŌURA are made. The company goes to develop several more generations before the final design.

05/2015

**ENGINEERING TESTING**  
 Final Production Validation  
 Test units of ŌURA Ring are completed. Wireless and durability testing begins.

**CONSUMER TESTING**  
 Thousands of people have tried and tested ŌURA Ring at Wearable Conference, Quantified Self Expo, Decoded Fashion, Sleep Conference and CE Week

08/2015

**KICKSTARTER**  
 ŌURA Ring opens its Kickstarter.

11/2015

**SHIPPING**  
 First orders of ŌURA Ring ship out in just two months after Kickstarter.

Q1/2016

Android app, ŌURA Cloud for data storage and backup are released

Ōura is constantly improving. It evolves with new features, and gains powerful new functionalities.

ŌURA Team

## ÖURA Team

We have a team with extensive hands-on experience in Health & Wellness, Medtech, Mobile/Telecoms/ICT industries, and in consumer electronics and software including over 20 years of experience in creating algorithms for the world's leading heart rate monitors and activity trackers. The team has strong expertise in applying science, conducting research, bringing out successful products and services, and cultivating continuous customer satisfaction. We couldn't be more excited about what we are doing at ÖURA. We look forward to seeing the ring on your finger and hearing your thoughts on it.



Team ÖURA

### Petteri Lahtela - Product

Bringing together his passion on wellbeing, physiology and creating products that people love, Petteri is a serial entrepreneur with 20+ years experience in creating market leading high-tech products in mobile telecom, health and wellness sectors as well as building international businesses and market entries in dozens of countries. ([Linkedin profile](#))

### Kari Kivelä - Technology & Design

Driving the pioneering work for design and miniaturization at ÖURA, Kari has previously led global software development at Nokia for 10+ years. Also, as a jewelry start-up entrepreneur Kari is uniquely familiar with design and form factor elements of a ring. ([Linkedin profile](#))

### Hannu Kinnunen - Science & Algorithms

Responsible for the science making ÖURA the most advanced wearable wellness device in the world, Hannu has 15+ years of experience at heart rate and activity monitoring pioneer Polar. Hannu is behind most algorithms used in Polar products today and credited in dozens of patents and scientific articles relating to heart rate based signal processing, biosignal detection, and analysis of activity, training, recovery and sleep. ([Linkedin profile](#); [ResearchGate profile](#))

### Harri Laakkonen - Software

Bringing intelligence into the world's first ring-size wellness computer by creating the firmware software, Harri is a signal processing, machine-learning algorithms and embedded SW

**Harri Laakkonen · Software**

Bringing intelligence into the world's first ring-size wellness computer by creating the firmware software. Harri is a signal processing, machine-learning algorithms and embedded SW development pioneer and serial entrepreneur with 25+ years experience in creating demanding high-tech products for global markets. ([Linkedin profile](#))

**Markku Koskela · Hardware**

Creating innovative solutions for accessing body signals in high precision. Markku is an optoelectronics and hyperspectral imaging specialist with 20 years experience in creating demanding measurement systems and embedded solutions for global markets. ([Linkedin profile](#))

**Ashley Colley · User Experience & UI Design**

Creating the ŌURA user experience. Ashley brings his 25+ years industry experience in User Experience, UI design and innovation to ensure that ŌURA is a delight to use. ([Linkedin profile](#))

**Tommi Pyykönen · Supply chain & Customer care**

With his 20+ years of experience on multiple management fields, most recently in the global supply chain management of Polar, Tommi is now building world class supply chain and customer care approaches at ŌURA. ([Linkedin profile](#))

**Virpi Tuomivaara · Comms**

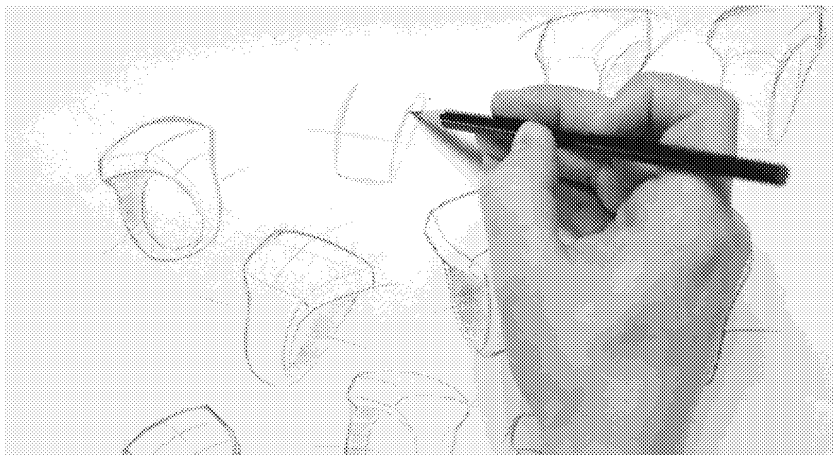
Virpi brings in her international experience in communications and various talents in dealing with people and delivering the key messages in creative ways. ([Linkedin profile](#))

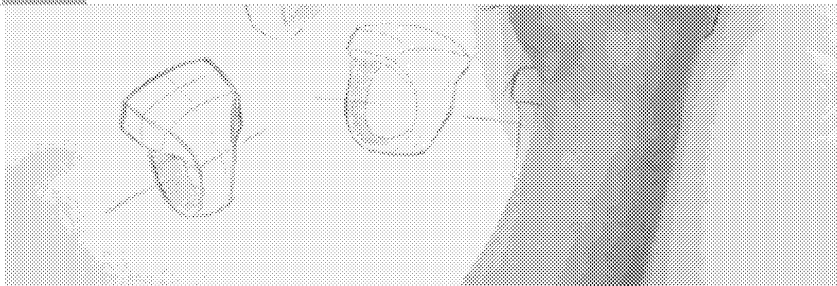
**Markku Hooli · Operations & Customer care, USA**

Markku brings in his 20 years of experience in global customer support and care from Nokia. He is responsible for this ŌURA Kickstarter project as well as global customer care, support, and communications. Based in San Francisco. ([Linkedin profile](#))

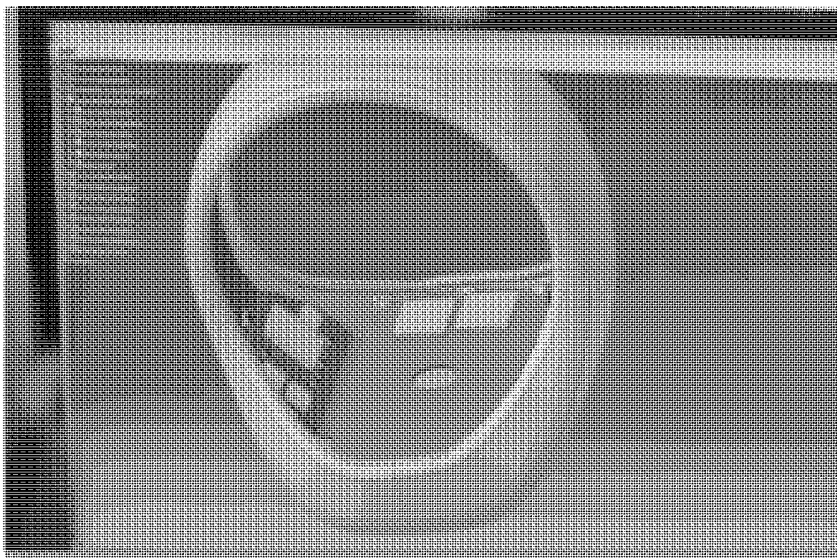
## How the world's first wellness ring was created

To arrive at the perfect design, we went through several generations of prototypes and managed to fit all this intelligence into a small, durable ring. Product development began over two years ago with technology studies and concept development. First industrial design mock-ups were fabricated during 2013. We managed to integrate sensors, electronics and battery to the first fully functioning ring prototype in spring 2014. User testing has been done in our team from the beginning of 2015 onward. Design of the ring and ring box were frozen in June 2015 after extensive electrical, reliability and environmental testing.

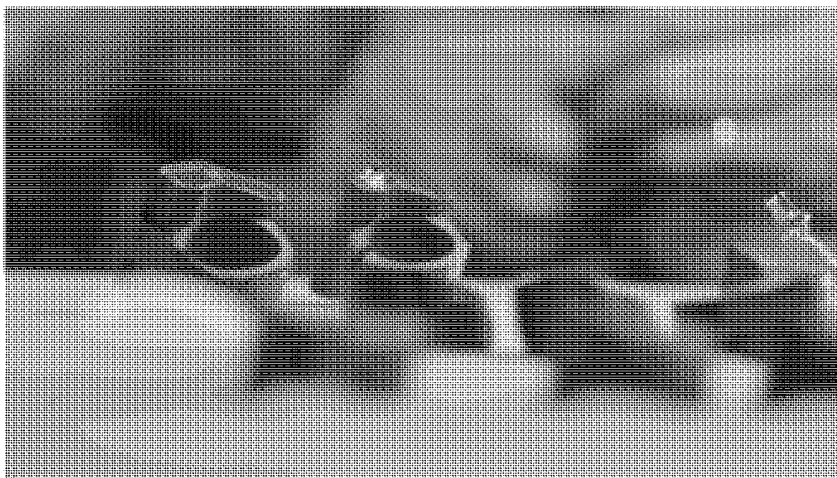




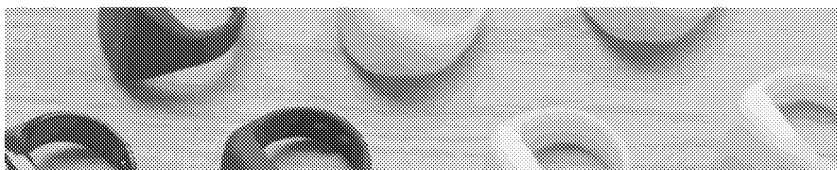
*Sketching the OURA ring*



*World class miniaturization.*

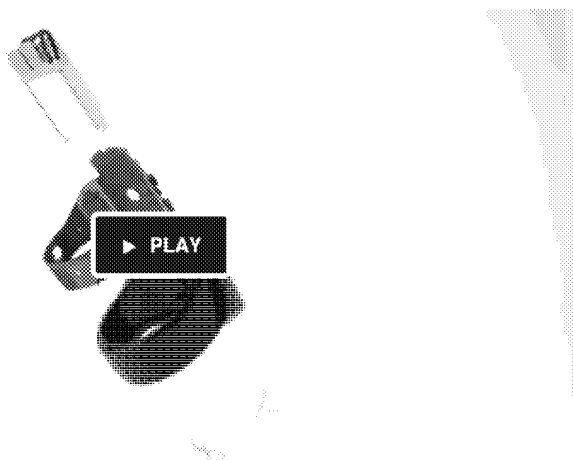


*Prototyping the World's first wellness ring.*





*Multiple generations of prototypes*

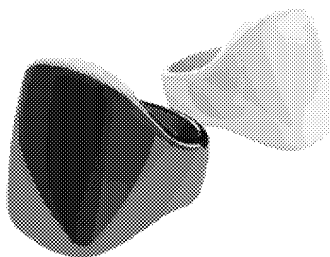


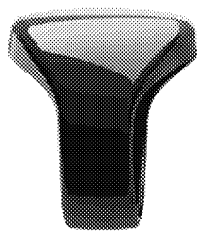
In an unprecedented way, ÆURA combines insightful jewelry design, elegance and ultimate wearing comfort with top tier science and technology to create absolutely unique user benefits. It is the first product of its kind - world's first ring-size wellness computer and app that provide actionable recommendations to improve sleep, and optimize activity, towards better balance and performance.

## Technical Specifications

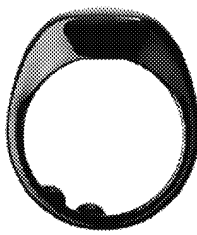
### ÆURA SPECIFICATIONS

|                       |                              |
|-----------------------|------------------------------|
| Material              | Zirconia (ZrO <sub>2</sub> ) |
| Available sizes       | US 6-13<br>(about 17-23 mm)  |
| Weight (US 12)        | 15g / 0.5 Oz                 |
| Wireless              | Bluetooth® Smart             |
| Operating Temperature | -10--70°C                    |
| Charging Temperature  | 0--60°C                      |





26 mm  
1.0"



23-28 mm  
0.9-1.1"

26-32 mm  
1.0-1.3"

OURA is designed to become part of your life. Never before has advanced technology fit a form so comfortable and ergonomic.

## PRICING

**\$199**

Early Bird Special  
(Glossy White / Black)

**\$229**

Kickstarter Early Price  
(Glossy White / Black)

**\$299**

Retail Price  
(Glossy White / Black)

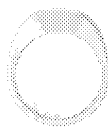
**\$399**

Kickstarter Early Price  
(Stealth Black)

## INCLUDED IN BOX

- ~ OURA Ring
- ~ Ring Box charger
- ~ Micro USB Cable
- ~ Quick Start Guide

## COLORS AVAILABLE



Glossy White



Glossy Black



Stealth Black

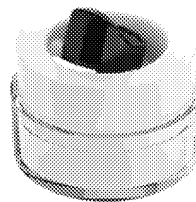
## BATTERY LIFE

Up to 3 days on one charge  
Charges in less than 60 min

## RING BOX CHARGER

Drop in Charging pads  
Breating LED light  
Micro USB connector  
Cable length  
Weight

1m/3.3ft  
75g/2.6oz



65 mm  
2.5"

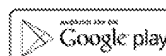
42 mm  
1.6"

## APPLICATION PLATFORMS

iOS 8.0 & later Nov 2015  
Android 4.4 & later 6/1/2016

## PRIVACY

Data Encryption  
Secure Pairing



We need you!

## We need you!

We are all set to begin the volume production of the ÖURA ring and timely delivery to our backers in November. Before shipments start we will send you free of charge the complete size range (US6-13) of plastic fitting rings so that you can take your time on choosing your preferred finger for wearing your ÖURA ring and the ring size that matches perfectly with it.

We need you, Kickstarter community to help us ramp up the volume production. We would love to hear your insights to fine-tune the ultimate ÖURA user experience and mobile user interface. We look forward to receiving your feedback on the ring and its daily use as well as wishes for features you might want to have in your ÖURA.

### Additional note

ÖURA enthusiasts already exist in 60 countries. We will ship ÖURA worldwide, with the exception of:

- no shipping to the following countries due to US embargo: Iran, Sudan, Syria, North Korea (listed as not fully cooperating) - no shipping to Brazil due to challenges in customs handling.

Please note that shipping to any country outside North America and EU/EFTA may be significantly delayed or even cancelled depending e.g. on the feasibility of local product approval requirements or local import regulations. In a case of cancellation your pledge will be refunded by ÖURA.

Please note that there may be additional duties, fees or taxes raised by the authorities in your country. You may need to take care of them yourself when receiving the shipment.

Shipping & handling costs: US & Canada \$10 rest of the world \$25

### Risks and challenges

#### Design

We make a miniature hardware design product with groundbreaking technology and software to go with it. To arrive at the perfect design, we went through several generations of prototypes and managed to fit all this intelligence into a small, durable ring. Together with our experienced partners we have tested materials, mechanics, electronics, software, and their interoperability extensively to make sure everything works at as high a level as we require.

However, despite all this thorough work on all aspects of the product, something surprising may still occur. We are very confident that any emerging challenges can be promptly solved with our collective expertise.

#### Manufacturing

All the technical and logistical resources involved in the development of ÖURA are located within a 30 min drive from the manufacturer. With this expertise and proximity we can deal with any issues that may arise in person and in real time, and be able to implement any corrective and preventive actions that will be required.

#### Logistics

We are working with market leading logistics partners. With their world class knowledge and support we can solve any issue that may emerge in our logistics structure. We are confident that you will receive your ÖURA without issues.

[Learn about accountability on Kickstarter](#)

go with it. To arrive at the perfect design, we went through several generations of prototypes and managed to fit all this intelligence into a small, durable ring. Together with our experienced partners we have tested materials, mechanics, electronics, software, and their interoperability extensively to make sure everything works at as high a level as we require.

However, despite all this thorough work on all aspects of the product, something surprising may still occur. We are very confident that any emerging challenges can be promptly solved with our collective expertise.

#### Manufacturing

All the technical and logistical resources involved in the development of OURA are located within a 30 min drive from the manufacturer. With this expertise and proximity we can deal with any issues that may arise in person and in real time, and be able to implement any corrective and preventive actions that will be required.

#### Logistics

We are working with market leading logistics partners. With their world class knowledge and support we can solve any issue that may emerge in our logistics structure. We are confident that you will receive your OURA without issues.

Learn about accountability on Kickstarter

## FAQ

- ▶ Can I wear the ring in any finger and how do I know my ring size ?
- ▶ How does the ring measure the heart beat ?
- ▶ What is the SAR level for the OURA (radio frequency/electromagnetic field) ?

Ask a question

Report this project to Kickstarter

#### About us

What is Kickstarter?  
Year in Kickstarter 2014  
What we are  
Jobs  
Press  
Stats  
Partners we love  
Spotlight **OURA**

#### Help

FAQ  
Our Rules  
Creator Handbook  
Trust & Safety  
Support  
Terms of Use  
Privacy Policy  
Cookie Policy

#### Discover

Art  
Comics  
Crafts  
Dance  
Design  
Fashion  
Film & Video  
Food

Games  
Journalism  
Music  
Photography  
Publishing  
Technology  
Theater

#### Help

Mapping  
Company Blog  
Engineering Blog  
Twitter  
Facebook  
Tumblr  
Instagram  
Pinterest  
YouTube

KICKSTARTER

© 2015 Kickstarter, Inc.

English

# **EXHIBIT B**

## Clark S. Bakewell

---

**From:** Pensabene, Marc J. <mpensabene@omm.com>  
**Sent:** Thursday, May 28, 2026 4:22 PM  
**To:** Michael Lindinger; Jas Vidwan; Schroeder, Nancy L.; WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS  
**Cc:** #OMM-SAMSUNG-OURA  
**Subject:** RE: 337-TA-1478 - Oura's 30(b)(6) Deposition Deficiencies

Mike,

We conferred internally and, based on the information provided in your May 27 letter, we withdraw our objections concerning the preparedness of Oura's 30(b)(6) witnesses on technical aspects of Oura Gen 1. We understand you, nonetheless, plan to move to amend Oura's witness list and we object for the reasons we discussed.

Best  
Marc

---

**From:** Lindinger, Michael L. <MLindinger@mayerbrown.com>  
**Sent:** Thursday, May 28, 2026 1:55 PM  
**To:** Pensabene, Marc J. <mpensabene@omm.com>; Vidwan, Jas <JVidwan@mayerbrown.com>; Schroeder, Nancy L. <nschroeder@omm.com>; WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>  
**Cc:** #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>  
**Subject:** RE: 337-TA-1478 - Oura's 30(b)(6) Deposition Deficiencies

Marc – we are available at 4pm ET for a meet and confer. I'll circulate a Teams invite shortly.

Best,  
Mike

### Michael L. Lindinger

*Partner*

Mayer Brown LLP

1999 K St. N.W.

Washington, D.C. 20006-1101

T +1 202 263 3423 | F +1 202 263 5323

[LinkedIn](#) | [Twitter](#)

[mayerbrown.com](http://mayerbrown.com)

---

**From:** Pensabene, Marc J. <[mpensabene@omm.com](mailto:mpensabene@omm.com)>  
**Sent:** Thursday, May 28, 2026 12:39 PM  
**To:** Vidwan, Jas <[JVidwan@mayerbrown.com](mailto:JVidwan@mayerbrown.com)>; Schroeder, Nancy L. <[nschroeder@omm.com](mailto:nschroeder@omm.com)>; WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <[Oura-ITC@mayerbrown.com](mailto:Oura-ITC@mayerbrown.com)>  
**Cc:** #OMM-SAMSUNG-OURA <[OMM-SAMSUNG-OURA@omm.com](mailto:OMM-SAMSUNG-OURA@omm.com)>  
**Subject:** RE: 337-TA-1478 - Oura's 30(b)(6) Deposition Deficiencies

**CAUTION: External Email** - Only click on contents you know are safe.

Michael, Jas, and counsel for Oura:

As you know, key members of our team are traveling, including in Korea, for the depositions in this case.

The Samsung respondents oppose Oura's motion to amend its witness list to add Tero Vallius and Marjut Uusitalo, and we do not accept the depositions of those individuals in Finland. We are available to meet and confer on today at 4pm ET.

Before May 26, Oura had not identified either individual as knowledgeable persons in response to Samsung's discovery requests, in its tentative witness list, or in its Rule 30(b)(6) designations. Instead, on May 26—three days before the close of fact discovery—Oura identified them for the first time. Their identities and any relevant knowledge were solely within Oura's control. Good cause for Oura's belated, last-hour identification of these individuals simply does not exist.

Samsung's May 22 letter identifying areas where Oura's designated witnesses were unprepared does not support Oura's attempt to shoehorn these individuals into the case at the last minute. Oura identified both individuals to testify regarding Oura Ring 1's alleged status as prior art, including its dates of public use in the U.S.—an issue Samsung did not raise in its letter as an area where Oura's witnesses were unprepared. As to Marjut Uusitalo, Oura's May 26 email identifies her as testifying regarding "[p]ublic use of Oura Ring Gen. 1 in U.S. prior to August 12, 2015." Our May 22 letter does not identify or suggest any areas where we believe Oura's designee was unprepared on the issue.

Best,  
Marc

---

**From:** Jas Vidwan <[JVidwan@mayerbrown.com](mailto:JVidwan@mayerbrown.com)>

**Sent:** Thursday, May 28, 2026 9:26 AM

**To:** Schroeder, Nancy L. <[nschroeder@omm.com](mailto:nschroeder@omm.com)>; WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <[Oura-ITC@mayerbrown.com](mailto:Oura-ITC@mayerbrown.com)>

**Cc:** #OMM-SAMSUNG-OURA <[OMM-SAMSUNG-OURA@omm.com](mailto:OMM-SAMSUNG-OURA@omm.com)>

**Subject:** RE: 337-TA-1478 - Oura's 30(b)(6) Deposition Deficiencies

Counsel,

I'm once again following up on the below on whether Samsung intends to move forward with depositions of Mr. Valius and Ms. Uusitalo. We've now sent four emails with no response from Samsung.

On Friday evening, Samsung sent a dispute letter demanding that Oura produce witnesses on Oura Ring Gen. 1. Even though we disagreed with Samsung's characterization, Oura offered two additional witnesses the very next business day. Oura has now offered multiple dates for witnesses prior to close of fact discovery, released those dates due to non-responsiveness from Samsung, and then offered alternatives. Yet still no response from Samsung.

Please immediately let us know whether Samsung accepts the offered dates for the Oura witnesses. **In addition, please let us know by noon ET today whether Samsung intends to oppose Oura's motion to amend the tentative witness list.** If so, please provide availability for your meet and confer today. If we hear no response from Samsung by noon ET, we will proceed to file our motion with the ALJ today and note that despite multiple attempts, Samsung refused to provide its position.

Thanks

Jas

---

**Jasjit S. Vidwan**

*Partner*

Mayer Brown LLP  
1999 K Street, NW  
Washington, DC 20006-1101  
T +1 202 263 3065  
[mayerbrown.com](http://mayerbrown.com)

---

**From:** Michael Lindinger <[MLindinger@mayerbrown.com](mailto:MLindinger@mayerbrown.com)>  
**Sent:** Wednesday, May 27, 2026 4:36 PM  
**To:** Schroeder, Nancy L. <[nschroeder@omm.com](mailto:nschroeder@omm.com)>; WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <[Oura-ITC@mayerbrown.com](mailto:Oura-ITC@mayerbrown.com)>  
**Cc:** #OMM-SAMSUNG-OURA <[OMM-SAMSUNG-OURA@omm.com](mailto:OMM-SAMSUNG-OURA@omm.com)>; Jas Vidwan <[JVidwan@mayerbrown.com](mailto:JVidwan@mayerbrown.com)>  
**Subject:** RE: 337-TA-1478 - Oura's 30(b)(6) Deposition Deficiencies

Counsel –

Hearing nothing, we are releasing Mr. Vallius from his deposition tomorrow. He is available at the same time on Friday, May 29, at 9am local time in Finland which is 2am ET/11pm PT. Also, please let us know if you accept the deposition date offered for Ms. Uusitalo for Friday, May 29, at 11am local time in Finland, which is 4am ET/1am PT.

Finally, please let us know if Samsung opposes Oura's motion to amend its witness list to include Mr. Vallius and Ms. Uusitalo and, if so, please provide your availability for a meet and confer tomorrow, May 28.

Best,  
Mike

**Michael L. Lindinger**

*Partner*

Mayer Brown LLP  
1999 K St. N.W.  
Washington, D.C. 20006-1101  
T +1 202 263 3423 | F +1 202 263 5323  
[LinkedIn](#) | [Twitter](#)  
[mayerbrown.com](http://mayerbrown.com)

---

**From:** Vidwan, Jas <[JVidwan@mayerbrown.com](mailto:JVidwan@mayerbrown.com)>  
**Sent:** Wednesday, May 27, 2026 3:24 PM  
**To:** Schroeder, Nancy L. <[nschroeder@omm.com](mailto:nschroeder@omm.com)>; WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <[Oura-ITC@mayerbrown.com](mailto:Oura-ITC@mayerbrown.com)>  
**Cc:** #OMM-SAMSUNG-OURA <[OMM-SAMSUNG-OURA@omm.com](mailto:OMM-SAMSUNG-OURA@omm.com)>  
**Subject:** RE: 337-TA-1478 - Oura's 30(b)(6) Deposition Deficiencies

Counsel,

I'm again following up on below as we need to let the witness know whether his deposition is proceeding here in few hours as it's 10pm local time. If Samsung is unable to make May 28<sup>th</sup> work, we can inquire about alternate dates for deposition for next week for Mr. Vallius. We intend to release Mr. Vallius for tomorrow's deposition in the next hour if we do not hear from Samsung.

On similar note, please also let us know if Samsung accepts Ms. Uusitalo's offered deposition for Friday, May 29<sup>th</sup> as soon as possible.

Finally, Oura intends to move to amend the tentative witness list to include both Mr. Vallius and Ms. Uusitalo. Please let us know if Samsung opposes, and if so, please provide your availability for a meet and confer tomorrow.

Thanks

Jas

---

**Jasjit S. Vidwan**

*Partner*

Mayer Brown LLP  
1999 K Street, NW  
Washington, DC 20006-1101  
T +1 202 263 3065  
[mayerbrown.com](http://mayerbrown.com)

---

**From:** Jas Vidwan**Sent:** Wednesday, May 27, 2026 11:24 AM**To:** Schroeder, Nancy L. <[nschroeder@omm.com](mailto:nschroeder@omm.com)>; WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <[Oura-ITC@mayerbrown.com](mailto:Oura-ITC@mayerbrown.com)>**Cc:** #OMM-SAMSUNG-OURA <[OMM-SAMSUNG-OURA@omm.com](mailto:OMM-SAMSUNG-OURA@omm.com)>**Subject:** RE: 337-TA-1478 - Oura's 30(b)(6) Deposition Deficiencies

Nancy,

Please let us know by 2:00pm ET today whether Samsung accepts Tero Vallius' deposition for tomorrow May 28<sup>th</sup>. As noted below, he is in Oulu, Finland (EEST). In addition, there is a slight change to my below: Mr. Vallius will testify in Finnish and therefore will need a translator.

Thanks

Jas

---

**Jasjit S. Vidwan**

*Partner*

Mayer Brown LLP  
1999 K Street, NW  
Washington, DC 20006-1101  
T +1 202 263 3065  
[mayerbrown.com](http://mayerbrown.com)

---

**From:** Jas Vidwan**Sent:** Tuesday, May 26, 2026 2:19 PM**To:** Schroeder, Nancy L. <[nschroeder@omm.com](mailto:nschroeder@omm.com)>; WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <[Oura-ITC@mayerbrown.com](mailto:Oura-ITC@mayerbrown.com)>**Cc:** #OMM-SAMSUNG-OURA <[OMM-SAMSUNG-OURA@omm.com](mailto:OMM-SAMSUNG-OURA@omm.com)>**Subject:** RE: 337-TA-1478 - Oura's 30(b)(6) Deposition Deficiencies

Nancy,

Oura disagrees with your characterization of Oura witnesses' preparedness for their designated topics. We will provide a more fulsome response shortly. However, in the interest of narrowing the disputes, Oura is making two additional witnesses for 30(b)(6) this week on Topic 26 related to Oura Ring Gen. 1 as follows:

1. Tero Vallius (Hardware, firmware, and functionality of Oura Ring Gen 1 that was in public use in the United States before August 12, 2015)
2. Marjut Uusitalo (Public use of Oura Ring Gen. 1 in U.S. prior to August 12, 2015)

Tero is available on May 28<sup>th</sup> and Marjut on May 29<sup>th</sup>. Both are in Oulu Finland. While both will testify in English, Oura intends to have a Finnish interpreter available for any clarifying language issues. Please let us know by tomorrow, May 27<sup>th</sup> whether Samsung accepts the offered dates for the two witnesses. If Samsung is unable to depose the two witnesses this week, please let us know and we can check their availability for next week. Below is the updated chart of Oura witness designations:

| Oura Witnesses    | Location          | Availability | 30(b)(6) Topic Nos.                                                             |
|-------------------|-------------------|--------------|---------------------------------------------------------------------------------|
| Lindsey Belknap   | Boston, MA        | May 6        | 27-28                                                                           |
| Simon Ratner      | San Francisco, CA | May 12       | 2-5 (As Topics Relate to App Source Code for Accused)                           |
| Miguel Christophy | San Francisco, CA | May 15       | 2-3, 19, 26 (As Topics Relate to Hardware for Accused)                          |
| Michael Larson    | San Diego, CA     | May 19       | 2-5, 26 (As Topics Relate to Firmware Source Code for Accused)                  |
| Jack Murrin       | New York City, NY | May 21       | 30, 33-35                                                                       |
| CJ Vincent        | Palo Alto, CA     | May 21       | 1, 6-7, 18, 30, 36                                                              |
| Tero Vallius      | Oulu, Finland     | May 28       | 26 (Hardware, firmware, and functionality of Gen 1 ring before August 12, 2015) |
| Tyler Schleich    | San Francisco, CA | May 29       | 20-23, 25, 30, 32                                                               |
| Marjut Uusitalo   | Oulu, Finland     | May 29       | 26 (Public use of Oura Ring Gen. 1 in U.S. prior to August 12, 2015)            |

Best,

Jas

---

**Jasjit S. Vidwan**

*Partner*

Mayer Brown LLP

1999 K Street, NW

Washington, DC 20006-1101

T +1 202 263 3065

[mayerbrown.com](http://mayerbrown.com)

---

**From:** Schroeder, Nancy L. <[nschroeder@omm.com](mailto:nschroeder@omm.com)>

**Sent:** Friday, May 22, 2026 3:07 PM

**To:** WDC-CLIENT-OuraiTCSERVICE-EXTERNAL-CONTACTS <[Oura-ITC@mayerbrown.com](mailto:Oura-ITC@mayerbrown.com)>

**Cc:** #OMM-SAMSUNG-OURA <[OMM-SAMSUNG-OURA@omm.com](mailto:OMM-SAMSUNG-OURA@omm.com)>

**Subject:** 337-TA-1478 - Oura's 30(b)(6) Deposition Deficiencies

Counsel –

Please see the attached correspondence.

Thank you,  
Nancy

**O'Melveny**

## Nancy Lynn Schroeder

Counsel

she, her, hers

[nschroeder@omm.com](mailto:nschroeder@omm.com)

O: +1-213-430-8266

M: +1-774-571-8677

---

O'Melveny & Myers LLP

400 South Hope Street, 18<sup>th</sup> Floor

Los Angeles, CA 90071

[Website](#) | [LinkedIn](#) | [Twitter](#)

**The American Lawyer: Ranked #1 on the A-List, including #1 for Associate Satisfaction**

**Vault: Five straight years in the Top 3 for Best Law Firm to Work For, Overall Diversity, and Best Summer Associate Program**

*This message and any attached documents contain information from the law firm of O'Melveny & Myers LLP that may be confidential and/or privileged. If you are not the intended recipient, you may not read, copy, distribute, or use this information. If you have received this transmission in error, please notify the sender immediately by reply e-mail and then delete this message.*

---

This email and any files transmitted with it are intended solely for the use of the individual or entity to whom they are addressed. If you have received this email in error please notify the system manager. If you are not the named addressee you should not disseminate, distribute or copy this e-mail.

Mayer Brown is a global legal services provider comprising an association of legal practices that are separate entities, including Mayer Brown LLP (Illinois, USA), Mayer Brown International LLP (England), Mayer Brown Hong Kong LLP (a Hong Kong limited liability partnership) and Tauil & Chequer Advogados (a Brazilian partnership).

Information about how we handle personal information and our use of relationship insight tools in conjunction with email is available in our [Privacy Notice](#).

**EXHIBIT C**  
**REDACTED IN ENTIRETY**

**CERTIFICATE OF SERVICE**

I hereby certify that a copy of the foregoing **RESPONDENTS' OPPOSITION TO SAMSUNG'S MOTION IN LIMINE NO. 3 (EDIS DOC. ID 892499)** was served upon the following as indicated below on September 2, 2026:

|                                                                                                                                                                                                                                       |                                                                                                  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------|
| The Honorable Lisa R. Barton Secretary to the Commission<br>U.S. INTERNATIONAL TRADE COMMISSION<br>500 E Street, S.W.<br>Washington, DC 20436                                                                                         | Via EDIS                                                                                         |
| The Honorable Doris Johnson Hines<br>Administrative Law Judge<br>U.S. INTERNATIONAL TRADE COMMISSION<br>500 E Street, S.W., Room 317<br>Washington, DC 20436                                                                          | Via email and Box:<br><a href="mailto:JohnsonHines1478@usitc.gov">JohnsonHines1478@usitc.gov</a> |
| <b>Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc.</b><br><br>D. Sean Trainor<br>O'MELVENY & MYERS LLP<br>1625 Eye Street, NW<br>Washington, D.C. 20006-4061<br>Telephone: (202) 383-5300 | Via email:<br><a href="mailto:OMM-SamsungOura@OMM.com">OMM-SamsungOura@OMM.com</a>               |

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.  
and Oura Health Oy*

**CERTIFICATE OF SERVICE**

I hereby certify that a copy of the foregoing **PUBLIC VERSION OF RESPONDENTS' OPPOSITION TO SAMSUNG'S MOTION *IN LIMINE* NO. 3** was served upon the following as indicated below on September 10, 2026:

|                                                                                                                                                                                                                                       |                                                                                                  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------|
| The Honorable Lisa R. Barton Secretary to the Commission<br>U.S. INTERNATIONAL TRADE COMMISSION<br>500 E Street, S.W.<br>Washington, DC 20436                                                                                         | Via EDIS                                                                                         |
| The Honorable Doris Johnson Hines<br>Administrative Law Judge<br>U.S. INTERNATIONAL TRADE COMMISSION<br>500 E Street, S.W., Room 317<br>Washington, DC 20436                                                                          | Via email and Box:<br><a href="mailto:JohnsonHines1478@usitc.gov">JohnsonHines1478@usitc.gov</a> |
| <b>Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc.</b><br><br>D. Sean Trainor<br>O'MELVENY & MYERS LLP<br>1625 Eye Street, NW<br>Washington, D.C. 20006-4061<br>Telephone: (202) 383-5300 | Via email:<br><a href="mailto:OMM-SamsungOura@OMM.com">OMM-SamsungOura@OMM.com</a>               |

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.  
and Oura Health Oy*